



Mathew Tyler
550 Vallombrosa Ave # 6471
Chico, CA 95927
+1-262-757-8802
hi@tylerpresident.com

Plaintiff, *Pro per pro se*

Dated: March 17, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No.: 2:2025CV00404

PLAINTIFF'S MOTION FOR REASONABLE ACCOMMODATIONS

PURSUANT TO THE AMERICANS WITH DISABILITIES ACT AND SECTION

504 OF THE REHABILITATION ACT

COMES NOW, MATHEW TYLER ("Plaintiff"), an indigent layperson proceeding pro per pro se and in forma pauperis, hereby moves this Honorable Court for reasonable accommodations pursuant to the Americans with Disabilities Act of 1990, 42 U.S.C. § 12101 et seq. ("ADA"), Section 504 of the Rehabilitation Act of 1973, 29 U.S.C. § 794 ("Section 504"), and the Crime Victims' Rights Act, 18 U.S.C. § 3771. In support of this motion, Plaintiff states as follows:

I. INTRODUCTION

Plaintiff is a qualified individual with a disability as defined under the ADA and Section 504, and a crime victim as defined under federal law (18 U.S.C. § 3771, 34 U.S.C. § 20141(e)(2)) and state law (California Constitution Article 1 § 28). As such, Plaintiff is entitled to specific rights under federal and state law, including the right to fair treatment and due process.

Plaintiff seeks reasonable accommodations to ensure meaningful access to court proceedings in this matter.

II. LEGAL STANDARD

In re Murchison, 349 U.S. 133, 136 (1955) (holding that "justice must satisfy the appearance of justice"). Courts have recognized that access to judicial proceedings constitutes a "benefit, service, privilege, program, facility, or activity" under these provisions. See United States v. Lanier, 520 U.S. 259, 272 (1997) (acknowledging that federal civil rights statutes protect access to justice). Under California Civil Code § 52.1, Plaintiff has a direct cause of action against those who interfere with the exercise or enjoyment of constitutional rights through threat, intimidation, or coercion. The

1 California Supreme Court has recognized that this provision should be construed broadly
2 to protect the exercise of rights guaranteed by federal or state law. See *Venegas v. County*
3 of Los Angeles, 32 Cal. 4Th 820, 843 (2004).

4 The Supreme Court has consistently held that there must be "meaningful access to
5 justice" for all persons regardless of their financial means. See *Griffin v. Illinois*, 351
6 U.S. 12, 17 (1956) ("There can be no equal justice where the kind of trial a man gets
7 depends on the amount of money he has."); *Boddie v. Connecticut*, 401 U.S. 371, 380-81
8 (1971) (finding due process violated where court filing fees barred indigent individuals
9 from court access in cases involving fundamental rights). When indigent pro se litigants
10 are not afforded the same consideration as represented parties with financial resources,
11 the principle of equal justice is undermined. See *Cruz v. Beto*, 405 U.S. 319, 321 (1972)
12 (emphasizing that pro se complaints must be liberally construed).

13 The ADA prohibits discrimination against individuals with disabilities and requires public
14 entities, including courts, to make reasonable modifications to policies, practices, and
15 procedures when necessary to avoid discrimination on the basis of disability. 42 U.S.C. §
16 12132; 28 C.F.R. § 35.130(b)(7).

17 Section 504 of the Rehabilitation Act similarly prohibits discrimination against qualified
18 individuals with disabilities by any program or activity receiving federal financial
19 assistance. 29 U.S.C. § 794(a).

20 Under the Crime Victims' Rights Act, crime victims have "[t]he right to be treated with
21 fairness and with respect for the victim's dignity and privacy." 18 U.S.C. § 3771(a)(8).

1 As a pro se litigant proceeding in forma pauperis, Plaintiff's sworn declaration serves this
2 purpose. See *Williams v. New York City Housing Authority*, 287 F. Supp. 2d 247, 249
3 (S.D.N.Y. 2003) (construing pro se litigant's declaration as an affidavit for purposes of §
4 144).

5 The courts have a heightened duty to construe pleadings liberally and to afford greater
6 latitude when evaluating the filings of in forma pauperis and pro se litigants. See *Haines*
7 *v. Kerner*, 404 U.S. 519, 520-21 (1972) (pro se complaints are held "to less stringent
8 standards than formal pleadings drafted by lawyers"); *Erickson v. Pardus*, 551 U.S. 89, 94
9 (2007) (pro se pleadings must be liberally construed); *McElyea v. Babbitt*, 833 F.2d 196,
10 197 (9th Cir. 1987) ("The court has a duty to ensure that pro se litigants do not lose their
11 right to a hearing on the merits of their claim due to ignorance of technical procedural
12 requirements."); *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975) (motions of self-
13 represented, in forma pauperis plaintiffs "should be viewed with special solicitude").

14 Furthermore, as recently affirmed by this Court in *Dunham v. Mohyuddin*, 2:23-CV-
15 2757-DMC-P, (E.D. Cal. Jan. 29, 2025), "The Court must also construe the alleged facts
16 in the light most favorable to the plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236
17 (1974); see also *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976);
18 *Barnett v. Centoni*, 31 F.3d 813, 816 (9th Cir. 1994) (per curiam). All ambiguities or
19 doubts must also be resolved in the plaintiff's favor. See *Jenkins v. McKeithen*, 395 U.S.
20 411, 421 (1969)." This principle is particularly relevant in cases involving pro se litigants
21 with disabilities seeking reasonable accommodations to access the courts.

1 The Judicial Conference of the United States has adopted a policy that all federal courts
2 are to provide reasonable accommodations to persons with communications disabilities.
3 This Court has also adopted local rules implementing these requirements.

4 III. **ACCOMMODATIONS REQUESTED**

5 Plaintiff respectfully requests the following accommodations:

6 A. **Appointment of Counsel**

7 Plaintiff requests appointment of counsel pursuant to 28 U.S.C. § 1915(e)(1), which
8 provides that "[t]he court may request an attorney to represent any person unable to
9 afford counsel." Plaintiff is indigent and proceeding in forma pauperis. Due to Plaintiff's
10 disabilities, Plaintiff requires the assistance of counsel to effectively participate in these
11 proceedings.

12 In determining whether to appoint counsel, courts consider: (1) the plaintiff's likelihood
13 of success on the merits; (2) the ability of the plaintiff to articulate his claims pro se in
14 light of the complexity of the legal issues involved; (3) the complexity of the legal issues;
15 (4) the plaintiff's ability to investigate his case; and (5) whether the case will require
16 expert testimony. See *Agyeman v. Corr. Corp. of Am.*, 390 F.3d 1101, 1103 (9th Cir.
17 2004). Consistent with *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan.
18 29, 2025), the Court must construe these factors in the light most favorable to Plaintiff,
19 and resolve any ambiguities or doubts in Plaintiff's favor.

20 In this case, appointment of counsel is warranted as a reasonable accommodation under
21 the ADA and Section 504 to ensure Plaintiff's meaningful access to the courts. See *Lane*
22 *v. Pena*, 867 F. Supp. 1050, 1059 (D.D.C. 1994) (recognizing that in appropriate

1 circumstances, appointment of counsel may be required as a reasonable accommodation
2 under the Rehabilitation Act).

3 **B. Access to ADA Parking in Secure Parking Areas**

4 Plaintiff requests access to designated ADA parking in the secure parking areas for all
5 district courthouses where proceedings in this matter may be held, pursuant to 18 U.S.C.
6 § 3771(a)(1), which guarantees crime victims "to be reasonably protected from the
7 accused" As required by 18 § 3771(b)(1). "reasonably protected from the defendant"
8 under California Constitution Article 1, § 28(b)(2) This accommodation will allow
9 Plaintiff to attend court proceedings without experiencing undue hardship or delays
10 related to parking and building access.

11 **C. Assistance with Service of Process by the U.S. Marshals Service**

12 Plaintiff requests that the U.S. Marshals Service assist with service of process in this
13 matter. As an indigent litigant proceeding in forma pauperis, Plaintiff is entitled to have
14 the U.S. Marshals effectuate service. See 28 U.S.C. § 1915(d) ("The officers of the court
15 shall issue and serve all process, and perform all duties in such cases."); Fed. R. Civ. P.
16 4(c)(3) ("The court must so order if the plaintiff is authorized to proceed in forma
17 pauperis under 28 U.S.C. § 1915...").

18 **D. Change of Venue**

19 Plaintiff requests a change of venue from the Redding Division to the Sacramento
20 Division of the Eastern District of California. This request is made as a reasonable
21 accommodation due to:

- 22 1. The greater accessibility features available at the Sacramento courthouse;

- 1 2. The proximity of Sacramento to necessary support services that Plaintiff requires
- 2 due to disability;
- 3 3. The significant hardship that would result from requiring Plaintiff to travel to
- 4 Redding for court proceedings; and
- 5 4. The fact that Sacramento is the seat of the Eastern District of California.

6 Pursuant to 28 U.S.C. § 1404(a), "[f]or the convenience of parties and witnesses, in the
7 interest of justice, a district court may transfer any civil action to any other district or
8 division where it might have been brought or to any district or division to which all
9 parties have consented." The requested change of venue serves the interest of justice by
10 facilitating Plaintiff's ability to participate in these proceedings.

11 **E. Additional Accommodations**

12 Plaintiff further requests any and all other relief, assistance, or accommodations that the
13 Court is able or capable of providing to ensure meaningful access to court proceedings,
14 including but not limited to:

- 15 1. Additional time to file pleadings and responses;
- 16 2. Permission to submit filings electronically or via alternative means;
- 17 3. Provision of court documents in accessible formats;
- 18 4. Scheduling accommodations to account for medical needs and treatment;
- 19 5. Permission to take breaks during prolonged court proceedings as needed; and
- 20 6. Any other reasonable accommodations that may become necessary throughout the
- 21 course of these proceedings.

22 **IV. CONCLUSION**

1 For the foregoing reasons, Plaintiff respectfully requests that this Court grant the
2 reasonable accommodations requested herein pursuant to the ADA, Section 504, and the
3 Crime Victims' Rights Act, to ensure meaningful access to court proceedings. As Judge
4 Cota himself has recognized in Dunham v. Mohyuddin, 2:23-CV-2757-DMC-P, (E.D.
5 Cal. Jan. 29, 2025), this Court must construe the alleged facts in the light most favorable
6 to the plaintiff and resolve all ambiguities or doubts in the plaintiff's favor. Applying this
7 standard to the present motion compels the conclusion that Plaintiff's motion be granted.

8 Dated March 17, 2025, at Butte County, California.

9 **Respectfully submitted,**

10

11

12



13 **Mathew Tyler**

14

550 Vallombrosa Ave # 6471

15

Chico, CA 95927

16

+1-262-757-8802

17

hi@tylerpresident.com

18

Plaintiff, Pro per pro se

19

1

VERIFICATION

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
3 that the foregoing is true and correct to the best of my knowledge and belief.

4

5 Executed on _____, at Butte County, California.

6

7

8



Mathew Tyler

9

550 Vallombrosa Ave # 6471

10

Chico, CA 95927

11

+1-262-757-8802

12

hi@tylerpresident.com

13

Plaintiff, Pro per pro se

14